

Sande

v.

Sande

(Case No. 198971)

Ms. Sande has filed a request for order regarding personal property, attorney fees, and sanctions under Family Code, section 271. She contends an agreement had been reached to retrieve certain personal property items, which Mr. Sande has breached. In preparation to honor the agreement, she arranged a U-Haul to retrieve the property. Upon arriving at the residence, she was allegedly denied access to a majority of the property. She was ignored by Mr. Sande when trying to address the issue, she contends. She seeks sanctions in the sum of \$2,500 “for his conduct” and requests a decision on the issue of attorney fees. The attorney fee request was taken under submission on April 22, 2022.

Mr. Sande filed a response that denies restricting access to the residence and suggests all items were given as planned. Photographs were attached to the response that show items being loaded into the U-Haul. As to support, he contends a check of \$2,669.00 was sent to Ms. Sande on May 10, 2022, and has yet to be negotiated. He believes the spousal support obligation will soon impose hardship because he cannot pay particular bills, which he contends will impact the credit rating of each party. He asks for a “reasonable amount of time” to catch-up on support; however, the request for order being heard on June 6, 2022, did not put spousal support at issue. The Court is therefore without jurisdiction to address support (See Family Code, section 213 [In a hearing on a motion, other than for contempt, the responding party may seek affirmative relief alternative to that requested by the moving party, **on the same issues raised by the moving party**, by filing a responsive declaration within the time set by statute or rules of court].”)

As for the property, the Court TENTATIVELY believes a hearing is necessary to sort through the issues before ruling on the motion and any request for sanctions. The reason for the Court’s apprehension is the strong factual disagreement on whether numerous items of property existed and/or were provided to Ms. Sande. Notwithstanding, if any property relating to Ms. Sande’s business remains in the possession of Mr. Sande, the Court intends that this property be accessible to Ms. Sande as soon as possible. The parties should come prepared to address that particular issue with all other property and sanctions to be addressed at the future hearing date.